

Delaware County Council Meeting November 26th 2024

Meeting Metadata	Details
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Delaware County Council Meeting Summary

Meeting Date: November 26, 2024

Body: Delaware County Council

Location: Delaware County, Indiana

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer President Piper called the regular meeting to order at [00:00:26](#). Public questions were directed to CountyCouncil@co.delaware.in.us.
- **Attendance:**
 - **Present:** Mr. Flanigan, Mr. Hughes, Mr. Motes (spelled phonetically as *M* in transcript), Mr. Web, Mr. Whitehead, Vice President K, President Piper.
 - **Absent:** None explicitly noted as absent during roll call.
 - **Key Officials Present:** Attorney Ben Freeman, Auditor Ed Carroll, Chief Deputy Auditor Tanya Dunmore.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by James at 00:00:33.
 - **Approval of Agenda:**
 - Amended to add the *Midwest Metal Products tax abatement declaratory resolution*.
 - **Action & Vote Disposition:** Passed Unanimously by Voice Vote (Roll call recorded).
 - **Approval of Minutes:**
 - October 22, 2025 Budget Hearing Minutes: Approved Unanimously by Voice Vote.
 - October 22, 2025 Council Meeting Minutes (with minor corrections noted by President Piper): Approved Unanimously by Voice Vote.
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3. Substantive Business & Board Action

Financial Transfers & Appropriations

(Note: A series of routine end-of-year fund transfers, balancing, and appropriation adjustments were reviewed to reallocate unused salary funds from unfilled positions<U+2014>notably corrections officer and planner lines<U+2014>into overtime, holiday pay, office supplies, equipment, and insurance lines. Specific department-level actions of note are detailed below.)

- **00:12:22 Planning Commission (Fund 148):**
 - **Presenter:** Kylen Swackhammer
 - **Deliberation:** Requested to transfer \$8,000 of unused 2024 salary funds to machinery and equipment lines, supported by written quotes. The Planning Commission is still returning a net give-back of \$31,995.2 to the general fund. Board members commended the department head for providing detailed invoices and quotes.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote.
- **00:18:43 Auditor's Office (Fund 126):**
 - **Presenter:** Tanya Dunmore, Chief Deputy Auditor
 - **Deliberation:** Transfer of \$2,400 to the claims deputy line to cover hiring a replacement before the former employee's final payout cleared. Council members (specifically Mr. Hughes and Mr. Ryan) strongly criticized this action as hiring *before* council funding approval ("asking for forgiveness rather than permission"), violating established backfilling protocols.
 - **Action & Vote Disposition:** Passed 6-1 (Mr. Web voted "absolutely not" / "no").
- **00:32:08 Coroner's Office (Fund 133):**
 - **Presenter:** Gavin Green, Coroner
 - **Deliberation:** Transferred \$56,000 from contractual services (unspent autopsy funds due to fewer autopsies performed) to operating supplies to purchase

necessary field equipment (OSHA-approved safety gear, boots, helmets). Council discussed autopsy volume trends and overall forecasting accuracy.

- **Action & Vote Disposition:** Approved Unanimously by Voice Vote.
- **01:23:54 Commissioners' Department (Fund 153 - Overtime Appropriation):**
 - **Presenter:** Pam (Commissioners' office)
 - **Deliberation:** Requested \$10,000 appropriation for overtime to cover building maintenance staff emergency call-outs (e.g., plumbing and facility failures at the Justice Center). Council discussed comp time caps (80 hours) and whether staff should take time off instead of accruing cash payouts, especially since no overtime was budgeted for 2024.
 - **Action & Vote Disposition:** Failed 3-2 (Need 4 votes to pass; Mr. K and Mr. Web voted No).
- **01:48:42 Treasurer's Office (Fund 127):**
 - **Presenter:** Treasurer's representative
 - **Deliberation:** Appropriated \$1,000 for construction to build a privacy office for the Chief Deputy, funded out of the mobile home permit fee fund.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote.
- **01:52:32 Auditor's Office (Fund 126 - Salary Study Software Import):**
 - **Presenter:** Tanya Dunmore / Matt
 - **Deliberation:** Originally requested \$20,000 for contractual services to hire an outside vendor to upload salary study data. Following discussion that full implementation cannot happen by year-end and vendor quotes for initial review are only \$1,200, the council moved to reduce the appropriation.
 - **Action & Vote Disposition:** Motion to amend amount to \$1,200 passed unanimously; Amended appropriation Approved Unanimously by Voice Vote.
- **02:04:17 Public Defender (Fund 139 - Major Appropriation):**
 - **Presenter:** Michelle Harvey
 - **Deliberation:** Requested \$116,107 (\$72,150 for attorney fees due to high murder trial/appeal volumes, and \$34,254 for health insurance shortfalls). The state public defender commission approved using supplemental funds next year, and 40% of these expenses are reimbursable.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote.

Ordinances & Resolutions

- **02:22:58 Ordinance 2024-d016: Job Classification and Compensation Committee (Second Reading)**
 - **Presenter:** Council Leadership / Committee
 - **Deliberation:** Brought back off the table. Amended to:
 1. Add a sitting County Commissioner (appointed by the Commissioners) and an outside member of the public with Human Resources experience (appointed

- by County Council) as ex-officio, non-voting members.
- 2. Require departmental reorganization proposals to be filed with the committee prior to June 1st of each calendar year.
- 3. Update the effective date to January 2, 2025.
- **Action & Vote Disposition:** Amendments passed unanimously; Ordinance 2024-d016 Approved as Amended by Voice Vote.
- **02:41:18 Ordinance 2024-25: Encumbrance Policy (Second Reading)**
 - **Presenter:** Council & Auditor's Office
 - **Deliberation:** Designed to streamline year-end encumbrances and establish deadlines aligned with state software modules. Department heads strongly objected, stating it placed an undue administrative burden and interfered with state-allowed year-end invoicing windows up to December 31st.
 - **Action & Vote Disposition:** Failed 1-6 (Only Vice President K voted "Yes"; all other members voted "No").
- **03:02:34 Ordinance 2024-26 (Renumbered from 2024-d026): Public Safety & Communications Experience Pay**
 - **Presenter:** Sheriff Tony Skinner / Fred Cummings / Council
 - **Deliberation:** Establishes a structured experience pay matrix for Sheriff's Deputies, Corrections Officers, and 911 hourly communications employees. Amended extensively during the meeting to:
 - Standardize experience tiers across all public safety entities (0-4 years: \$0; 5-9 years: \$1,000; 10-14 years: \$2,200 [corrected during reading to scale cleanly]; 15-19 years; 20-24 years: \$4,000; 25+ years: \$5,000).
 - Clarify that prior experience must be earned within Delaware County (except where transferred internally across eligible public safety roles).
 - Base years of service on the annual anniversary hire date, with payouts taking effect January 1st.
 - Direct the Auditor's office to establish a dedicated longevity experience payline.
 - **Action & Vote Disposition:** Amendments passed unanimously; Ordinance 2024-26 Approved as Amended Unanimously by Voice Vote.
- **03:39:52 Ordinance 2024-27: Deputy Prosecutor & Master Commissioner Experience Pay**
 - **Presenter:** Prosecutor's Office / Council
 - **Deliberation:** Establishes a similar experience/longevity scale for Deputy Prosecutors and the Master Commissioner, incorporating a specialty point system (Exhibit A). Amended to include public defender experience within Delaware County as eligible credit for deputy prosecutors, shift "may" to "shall", and mandate auditor line creation.
 - **Action & Vote Disposition:** Amendments passed; Ordinance 2024-27 Approved as Amended Unanimously by Voice Vote.

- **04:04:18 Resolution 2024-18: Midwest Metal Products Tax Abatement (Declaratory Resolution)**
 - **Presenter:** Bill (Tax Abatement Committee)
 - **Deliberation:** Proposes designating equipment installation sites as Economic Revitalisation Areas (ERA) and granting a 5-year phased tax abatement for \$2.25 million in new metalworking equipment replacing 25-year-old machinery. The company retains existing staff and looks to expand.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote (Mr. Whitehead abstained due to a conflict of interest via spouse employment).
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4. New Business

- **04:13:52 Foundry Row Apartments Update:**
 - **Presenter:** Marissa Caner, Development Director with TWG Development
 - **Deliberation:** Provided an update on a planned \$26 million 120-unit workforce housing development on South Cowen Road. TWG successfully secured competitive funding through the Indiana Housing and Community Development Authority (IHCDA) for the Northeast region. The project relies on a 15-year Payment in Lieu of Taxes (PILOT) agreement to secure scoring points. Construction is targeted for March/April 2025 following design finalization in February.
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5. Open Public Comment / Citizen Forum

- **04:42:54 00:42:54 Jamie Bane, Health Department Administrator:**
 - Addressed the council regarding five health department staff members transitioning from non-exempt to exempt status in 2025, inquiring about proper comp time payout options, budget line creation, and addressing unadopted job descriptions for newly created roles.
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6. Administrative Updates & Adjournment

- **04:20:46 Board Appointments & Committee Openings:**
 - Reminder that applications for 2025 board vacancies (Alcohol Beverage Board, Council Attorney, Daleville Economic Board, Housing Authority, Property Tax Assessment Board, Redevelopment Commission, Yorktown Economic Board, Board of Health, and an HR community representative) are due by December 1, 2024, sent to CountyCouncil@co.delaware.in.us. A graphic listing meeting times is forthcoming.
- **04:26:09 2025 Meeting Schedule:**

- Approved unanimously with adjustments for holidays and spring break.
 - **04:54:42 Adjournment:**
 - **Action & Vote Disposition:** Motion to adjourn by Bill, seconded by Matt. Approved Unanimously by Voice Vote. Meeting adjourned.
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